

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.
★ MAY 18 2010 ★

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TERRELL BELL,

Plaintiff,

- against -

COMPLAINT AND
JURY TRIAL DEMAND

P.O. DANIEL LUDEMANN, Shield No. 10721,
P.O. JOHN RESTAINO, Shield No. 27003, P.O.
ROXANNE CHEN, Shield No. 30657, and THE
CITY OF NEW YORK,

10 2274
MAUSKOPF, J.

Defendants.
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GOLD, M.

Plaintiff, TERRELL BELL, by his attorney, ALAN D. LEVINE, ESQ., complaining
of the defendants herein, respectfully alleges as follows:

JURISDICTION

1. This is a civil action, seeking compensatory damages, punitive damages and attorney's fees.
2. This action is brought pursuant to 42 U.S.C. §§1983 and 1988 and the fourth amendment to the Constitution of the United States.
3. Jurisdiction is founded upon 28 U.S.C. §§1331, 1343 and 1367.
4. Plaintiff, invoking the pendent jurisdiction of this Court, also seeks compensatory and punitive damages for battery and negligence.

VENUE

5. Venue is properly alleged in the Eastern District of New York in that the acts complained of herein occurred within this District.

JURY TRIAL DEMAND

6. Plaintiff hereby demands a trial by jury of all issues in this action that are so triable.

PARTIES

7. At all times relevant hereto, plaintiff, TERRELL BELL, was and is a natural person, resident in the County of Kings, City and State of New York.

8. At all times relevant hereto, defendant P.O. DANIEL LUDEMANN, Shield No. 10721, (hereinafter "LUDEMANN") was and is a natural person, employed as a police officer by defendant CITY OF NEW YORK.

9. At all times relevant hereto, defendant P.O. JOHN RESTAINO, Shield No. 27003, (hereinafter "RESTAINO") was and is a natural person, employed as a police officer by defendant CITY OF NEW YORK.

10. At all times relevant hereto, defendant P.O. ROXANNE CHEN, Shield No. 30657, (hereinafter "CHEN") was and is a natural person, employed as a police officer by defendant CITY OF NEW YORK

11. At all times relevant hereto, defendant CITY OF NEW YORK was and is a municipal corporation, organized and existing pursuant to the laws of the State of New York.

12. On or about May 11, 2009, this date being within ninety (90) days after the claims herein sued upon accrued, plaintiff served upon the Comptroller of the City of New York a verified written notice of claim setting forth the time, place, nature and manner in which said claim arose.

13. More than thirty (30) days have elapsed since the aforesaid verified notice of claim was served and the Comptroller has neglected and refused to make payment of said claim.

14. This action is commenced within one year and ninety days from the date the pendent claims herein accrued.

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS**
(42 U.S.C. §1983)

15. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "14" hereinabove as if more fully set forth at length herein.

16. On or about February 21, 2009, at approximately 4:25 A.M., inside a gasoline station with the address of 1525 Myrtle Avenue, County of Kings, City and State of New York, plaintiff attempted to commit a robbery by snatching a purse from a female who was present in the aforementioned premises.

17. Approximately twenty-five minutes after the aforementioned incident, plaintiff was present on the sidewalk at or near the corner of Myrtle Avenue and Palmetto Street in the County of Kings, City and State of New York.

18. At the aforementioned time and place, a New York City Police Department motor vehicle, upon information and belief operated by one of the individual defendants hereto, and also occupied by one or more of the remaining individual defendants hereto, was intentionally driven onto the sidewalk, where it was used to strike plaintiff.

19. The aforementioned police department motor vehicle was intentionally used to strike plaintiff so as to apprehend him for the aforementioned attempted robbery.

20. The aforementioned force used against plaintiff, namely intentionally and maliciously striking him with a moving motor vehicle, was excessive and without any legal justification whatsoever.

21. One or more of the individual defendants violated plaintiff's right to be free of excessive force, guaranteed to him by the fourth amendment to the Constitution of the United States in that, acting under color of state law, he or she, without any cause or provocation whatsoever, intentionally and maliciously struck plaintiff with a moving motor vehicle.

22. Because of the aforesaid act committed against him by one of the individual defendants hereto, plaintiff suffered a deprivation of his right to be free of excessive force, guaranteed to him by the fourth amendment to the Constitution of the United States and, as a result, suffered and continues to suffer serious, permanent and disabling injuries; underwent surgery for his injuries; and is reasonably expected to incur medical expenses for treatment and rehabilitation in the future.

23. By reason of the unconstitutional and illegal actions taken against him by one or more of the individual defendants, plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK
(Battery)**

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "23" hereinabove as if more fully set forth at length herein.

25. On or about February 21, 2009, at approximately 4:50 A.M., on the sidewalk at or near the corner of Myrtle Avenue and Palmetto Street, in the County of Kings, City and State of New York, one of the individual defendants hereto, without probable cause therefor, offensively touched plaintiff by driving a New York City Police Department motor vehicle onto the sidewalk and intentionally striking plaintiff with it.

26. The aforesaid force used by one of the individual defendants hereto was not reasonable under the circumstances.

27. At the aforesaid time and place, the individual defendants were acting within the scope of their employment by defendant CITY OF NEW YORK.

28. By reason of the aforesaid battery committed against him by one of the individual defendants, while acting within the scope of his or her employment by defendant CITY OF NEW YORK, plaintiff suffered and continues to suffer serious, permanent and disabling injuries; underwent surgery for his injuries; and is reasonably expected to incur medical expenses for treatment and rehabilitation in the future.

29. As a result of the battery committed upon him by one of the individual defendants, while acting within the scope of his or her employment by defendant CITY OF NEW YORK, plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages against the individual defendants.

**AS AND FOR A THIRD CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK
(Negligence)**

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "29" hereinabove as if more fully set forth at length herein.

31. On or about February 21, 2009, at approximately 4:50 A.M., at or near the corner of Myrtle Avenue and Palmetto Street, in the County of Kings, City and State of New York, one of the individual defendants hereto negligently, carelessly and recklessly drove a New York City Police Department motor vehicle onto the sidewalk, thereby causing the vehicle to strike plaintiff.

32. At the aforementioned time and place, the individual defendants were acting within the scope of their employment by defendant CITY OF NEW YORK.

33. By reason of the aforementioned recklessness, carelessness and negligence of one of the individual defendants hereto, while he or she was acting within the scope of his or her employment by defendant CITY OF NEW YORK, and with no culpable conduct whatsoever on his part, plaintiff suffered and continues to suffer serious, permanent and disabling injuries; underwent surgery for his injuries; and is reasonably expected to incur medical expenses for treatment and rehabilitation in the future.

34. Solely as a result of the aforementioned carelessness, recklessness and negligence of one of the individual defendants hereto, plaintiff suffered serious injury, as defined by New York Insurance Law § 5102(d) and suffered economic loss greater than basic economic loss as defined by New York Insurance Law § 5102(a).

35. This action falls within one or more of the exceptions contained within CPLR 1602.

36. As a result of the aforementioned recklessness, carelessness and negligence of one or more of the individual defendants, while acting within the scope of his or her employment by defendant CITY OF NEW YORK, plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages against the individual defendants.

WHEREFORE, plaintiff, TERRELL BELL, demands judgment against defendants, P.O. DANIEL LUDEMANN, Shield No. 10721, P.O. JOHN RESTAINO, Shield No. 27003, P.O. ROXANNE CHEN, Shield No. 30657, and THE CITY OF NEW YORK, as follows:

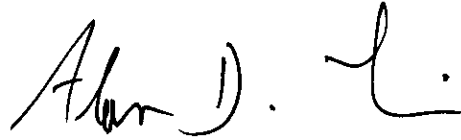
FIRST CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages;

SECOND CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages against the individual defendants;

THIRD CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages against the individual defendants.

In addition, plaintiff demands the costs and disbursements of this action, including his attorney's fees, pursuant to 42 U.S.C. §1988.

Dated: Kew Gardens, New York
May 17, 2010

A handwritten signature in black ink, appearing to read "Alan D. Levine". The signature is written in a cursive, flowing style.

ALAN D. LEVINE, ESQ.
Attorney for Plaintiff
80-02 Kew Gardens Road, Suite 302
Kew Gardens, New York 11415
718-793-6363
File No: 2123